IN THE UNITED STATES BANKRUPTCY COURT

FOR THE WESTERN DISTRICT OF VIRGINIA

UNITED STATES BANKRUPTCY COURT

WESTERN DISTRICT OF VIRGINIA

In re:

JAMES ALAN ROSEN,
ROBIN LESLIE ROSEN
Debtors.

Case No: 23-61235
Chapter 7

James Alan Rosen,
Plaintiff,

v.

Texas Guaranteed Student Loan Corporation (n/k/a Trellis),
Defendant.

Adversary Pro No: _____

TEXAS GUARANTEED STUDENT LOAN CORPORATION (n/k/a TRELLIS),

Defendant.

COMPLAINT SEEKING STUDENT LOAN DISCHARGE

TO THE HONORABLE REBECCA CONNELLY:

Comes now James Alan Rosen, Plaintiff herein, by counsel, and moves the Court for a finding that his total debt owed to the Texas Guaranteed Student Loan Corporation (Trellis) is eligible for discharge as repayment on such debt poses an undue hardship upon the plaintiff-debtor and as grounds therefore states:

1. This is an adversary proceeding brought pursuant to Bankruptcy Rule 7001(6) and 7001(9) to determine the dischargeability of a debt under 11 U.S.C. § 523(a)(8).

2. This Court has jurisdiction of this proceeding pursuant to section 1334 of title 28 of the United States Code.

3. This adversary proceeding constitutes a core proceeding as defined in title 28 U.S.C. § 157(b)(2).

4. This is a complaint by a consumer debtor against the Texas Guaranteed Student Loan Corporation (Trellis) to determine the dischargeabilty of a debt owed by the debtor to the Trellis.

5. Plaintiff filed a Chapter 7 bankruptcy petition on November 8, 2023.

4. This is a complaint by a consumer debtor against the Texas Guaranteed Student Loan Corporation (Trellis) to determine the dischargeability of a debt owed by the debtor to the Trellis.

5. Plaintiff filed a Chapter 7 bankruptcy petition on November 8, 2023.

6. Debtor was granted a discharge on February 20, 2024and the case was closed.

7. The case was on reopened April 9, 2024.

8. One of the debts owed by the Plaintiff and listed on Schedule F is a liability for student loans owed to the Texas Guaranteed Student Loan Corporation (hereinafter "Trellis Company") through its servicer Navient. The current balance of the student loan is approximately $60,180.00.

9. This complaint seeks discharge of all amounts owed to the Texas Guaranteed Student Loan Corporation (Trellis Company) as an undue hardship under 11 USC § 523(a)(8).

FACTS AND REQUEST FOR RELIEF

10. The male debtor is 78 years old and lives in the City of Charlottesville, Virginia.

11. He has been married for approximately 47 years and both he and his wife are retired.

12. He incurred parent plus student loans for his daughters. They attended the following schools during the following loan periods: Syracuse University (08/27/01 - 05/09/02 and 08/26/02 - 05/08/03); Brown University (09/04/01 - 05/17/02). All loans were consolidated on 08/05/05 at an interest rate of 4.25%.

13. The Plaintiff and his spouse are both retired. The Plaintiff receives social security retirement benefits and a small pension. His spouse also receives social security retirement benefits. They have no other income.

14. The loans are currently in default.

15. Since the loans were incurred, Plaintiff has made a good faith effort to pay the loan, including making $86,171.84 in payments on the loans.

15. Since the loans were incurred, Plaintiff has made a good faith effort to pay the loan, including making $36,171.84 in payments on the loans.

16. Plaintiff spent a total of 8 years and 6 months in forbearances or deferments since 2014.

17. The Plaintiff has minimal assets. See Schedule A/B. Docket Entry 1, Case 23-61235.

18. The Plaintiff has no significant assets with which he can pay the student loans.

19. Based on the Plaintiff current income and family expenses, the Plaintiff cannot maintain a minimal standard of living and repay the student loans.

20. The Plaintiff's current financial condition is likely to continue indefinitely as he and his wife are retired and live on a fixed income. This will last for the remainder of repayment period of the loan.

21. The Plaintiff has made a good-faith effort to repay his debt owed to Texas Guaranteed Student Loan Corporation as he has sought forbearances, deferments and made payments.

22. [Statement under FRBP 7008(a) whether Plaintiff does or does not consent to entry of final orders or judgment by the bankruptcy court. Not in the filed complaint; counsel to state.]

Wherefore, plaintiff prays this court enter an order declaring the total debt owed by the plaintiff-debtor to the Texas Guaranteed Student Loan Corporation for the student loan(s) presents an undue hardship on the plaintiff, is therefore dischargeable, and for such further relief as may be just.

Lynn A. Bradley, Esquire
VSB # 35761
Tucker Griffin Barnes, PC
307 Rio Road West
Charlottesville, Virginia 22901
Telephone: (434) 951-0857
lbradley@tgblaw.com

Respectfully submitted,

JAMES ALAN ROSEN

BY: /s/ Lynn A. Bradley
Counsel

Respectfully Submitted:

JAMES ALAN ROSEN

BY: /s/ Lynn A. Bradley
Counsel

Service:
Trellis Company
P.O. Box 83100
Round Rock, TX 78683-3100

Lynn A. Bradley, Esquire
VSB # 35761
Tucker Griffin Barnes, PC
307 Rio Road West
Charlottesville, Virginia 22901
(434) 951-0857
lbradley@tgblaw.com

Service:

Trellis Company
P.O. Box 83100
Round Rock, TX 78683-3100